Mohit Arora vs Serious Fraud Investigation Office on 28 August, 2025

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* IN THE HIGH COURT OF DELHI AT NEW DELHI

\+ CRL.M.C. 5233/2025

MOHIT ARORA

Through: Mr
Ad
Mr
Mr

versus

SERIOUS FRAUD INVESTIGATION OFFICE .....Respondent

Through: Ms.Rupali Bandhopadya, CGSC wi
Mr.Abhiijeet Kumar, Mr.Divyans
Bhardwaj and Ms.Amisha Gupta,
Advocates

CORAM:

HON'BLE MR. JUSTICE ARUN MONGA

ORDER

% 28.08.2025

1. The instant application bearing No. CRL.M.A. 22629/2025 in CRL.M.C. 5233/2025 has been filed seeking indulgence from this Court to accord the applicant/petitioner one time permission to travel abroad from 10.09.2025 to 15.09.2025 in order to participate in the business conference in Singapore, where he has fixed his meetings with the proposed investors in the ongoing projects of the company in which he is a promoter.

2. In the main petition which is pending in this court, the applicant/petitioner is seeking cancellation/withdrawal of the LOC issued against him at the behest of Joint Director, Serious Fraud Investigation This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/08/2025 at 23:25:05 Office i.e. the respondent. He seeks the permission to travel for one week during pendency of the main petition.

3. The matter was in fact, heard earlier on 26.08.2025 and the following order was passed:-

> "1. Having heard the arguments at some length, in course thereof, it transpires that qua the same very conference which the applicant herein wishes to seek permission from this Court to travel from 10.09.2025 to 15.09.2025, an independent permission has also been granted to him vide an order dated 30.08.2025, in collateral criminal

proceedings, by the competent PMLA Court. Same set of financial transactions are under investigation under PMLA as are being investigated by the SFIO herein.

2. The PMLA court order is, however, not on record. Though, a sequel order dated 22.08.2025 has been placed on record which reflects that the applicant has complied with the terms and conditions which were imposed on him by the PMLA Court, as a pre requisite to travel vide its order dated 13.08.2025.

3. Ms. Rupali, learned CGSC for the non-

applicant/State/SFIO seeks some time to get instructions qua the aforesaid order, as to whether the applicant can be permitted to travel by imposing similar conditions on him as has been done by the PMLA Court. Copy of the PMLA court order be supplied to her.

4. List on 28.08.2025.

5. A copy of the above said order dated 13.08.2025 be placed on court record."

4. Apropos, on resumed hearing today, the order dated 13.08.2025 passed by the learned Sessions Judge in the proceedings under PMLA has been placed on record. Same reveals that, for the same very conference, applicant/petitioner has been given similar permission to travel to Singapore by suspending the lookout circular qua the PMLA proceedings.

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5. The learned Senior Counsel appearing for the applicant/petitioner states that despite the said permission accorded by the PMLA Court, applicant/petitioner is unable to travel because of the LOC which has been also simultaneously opened against him at the behest of SFIO. 5.1 Moreover, the learned Senior submits that the applicant/petitioner seeks permission to travel to Singapore solely for business purposes. The said conference attracts real estate developers from around the globe and he intends to seeks capital from investors. The applicant/petitioner intends to re-start and complete the stalled projects and give the units to the home buyers.

5.2 Furthermore, the learned Senior also submits that the applicant/petitioner belongs to the promoter family of M/s Supertech Limited, which has build various large scale real estate projects in India. Hence, the conference holds significant importance for the applicant/petitioner to generate funds.

6. Learned counsel for the respondent/SFIO opposes the application primarily on the ground that, there is a serious apprehension of applicant/petitioner misusing the concession as he may not ever

return to India.

7. Heard and perused the case file.

8. I am of the opinion that no doubt, SFIO proceedings are going against the companies under investigation [CUI] wherein applicant/petitioner is/was promoter/director, but PMLA's stringency and its is at much higher footing than those of proceedings initiated by the SFIO-respondent herein. No doubt, scope of both proceedings and role attributed in simultaneous proceedings, ibid, may vary and to thus both proceedings are simultaneously This is a digitally signed order.

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9. But, what cannot be lost sight is that having carried out the investigation qua the same very financial transactions, which are more or less same i.e. be it under scanner of PMLA, as well as SFIO, the applicant/petitioner was not arrayed as an accused by the Directorate of Enforcement in PMLA proceedings.

10. The difference in the proceedings initiated by the SFIO is that the companies of which he is a promoter are under investigation. Being a promoter/director therein, he has been arrayed as one of the accused by the SFIO and not in his personal capacity. Thus, being an accused herein, unlike in PMLA, there is an opposition to the present petition, on the ground, that he cannot claim parity merely because he has been given the permission in the PMLA proceedings.

11. I am unable to persuade myself with the arguments, the reasons are not far to seek i.e. firstly, the investigation/inquiry by the SFIO has been ongoing for the past as many as 3 years. Applicant/petitioner has throughout cooperated and appeared before SFIO as and when required. Learned counsel for the respondent would though contend that applicant/petitioner has not co-operated. However, it appears that the opposition seems to be just for the sake of it, as there is no material in support thereof on the Court file.

12. Be that as it may, the fact remains that there is neither any court order nor any bail condition of any kind as far as SFIO proceedings are concerned, so as to be an impediment in the proposed travel for one week.

13. Applicant/petitioner has even never been arrested in the SFIO proceedings, given that it is the companies who are under investigation. Furthermore, as already observed, all that he is seeking permission is for 5 This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/08/2025 at 23:25:05 days while his family continues to stay in India. He shall be leaving behind his wife and a minor child who is 2 years old.

14. Apart therefrom, my attention has been drawn to the order dated 11.05.2023 passed by the Hon'ble Supreme Court arising out of insolvency proceedings, wherein it has been noted as below:-

> "...10. In the light of the principles aforesaid, in our view, as at present, we should adopt the course which appears to carry lower risk of injustice, even if ultimately in the appeals, this Court may find otherwise or choose any other course. In that regard, the element of balance of convenience shall have its own significance. On one hand is the position that the Appellate Tribunal has adopted a particular course (which it had adopted in another matter too) while observing that the project-wise resolution may be started as a test to find out the success of such resolution. The result of the directions of the impugned order dated 10.06.2022 is that except Eco Village-II project, all other projects of the corporate debtor are to be kept as ongoing projects and the construction of all other projects is to be continued under the supervision of the IRP with the ex-management, its employees and workmen. Infusion of funds by the promoter in different projects is to be treated as interim finance, regarding which total account is to be maintained by IRP. If at the present stage, on the submissions of the appellants, CoC is ordered to be constituted for the corporate debtor as a whole in displacement of the directions of the Appellate Tribunal, it is likely to affect those ongoing projects and thereby cause immense hardship to the home buyers while throwing every project into a state of uncertainty. On the other hand, as indicated before us, the other projects are being continued by the IRP and efforts are being made for infusion of funds with the active assistance of the ex-management but without creating any additional right in the ex-management. In our view, greater inconvenience is likely to be caused by passing any interim order of constitution of CoC in relation to the corporate debtor as a whole; and may cause irreparable This is a digitally signed order.
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> The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/08/2025 at 23:25:05 injury to the home buyers. In this view of the matter, we are not inclined to alter the directions in the order impugned as regards the projects other than Eco Village-II."

15. A perusal of the above reveals that applicant/petitioner has to infuse funds in the ongoing project. It is stated that he is endeavouring to ameliorate the hardship of home buyers at large, in discharge of his responsibility by meeting the proposed investors in Singapore. Proposed funds are required to be infused in the ongoing project so as to revive the company, in the larger interest of the public and the home buyers.

16. Having given my thought to the totality of the circumstances, I am of the view that the instant application deserves to be allowed. It is ordered accordingly. The applicant/petitioner is permitted to travel to Singapore from 10.09.2025 to 15.09.2025 for attending 23 rd CredAI NATCON Conference, 2025.

17. It is, however, deemed appropriate that to allay the fears of the respondent-SFIO qua the non-return of the applicant/petitioner, he shall surrender the passport of his wife for the duration he is travelling which shall be returned forthwith upon his return, as well as, also handover the original title deeds of the property bearing Flat No. 2712, Tower-C, Damac Aykon City, 395, Sheikh Zayed Road, Dubai, UAE, to the Investigating Officer of the respondent-SFIO, which too shall be returned forthwith upon his return.

18. The respondent-SFIO shall write a letter to the Bureau of Immigration stating therein that for the duration the applicant/petitioner has to travel, the LOC shall stand suspended and upon his return, he shall immediately report to the respondent-SFIO. Thereafter, the respondent-SFIO shall be at liberty This is a digitally signed order.

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19. The application stands disposed of.

20. Dasti.

List on 10.11.2025.

ARUN MONGA, J AUGUST 28, 2025 dy This is a digitally signed order.

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